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RICHARD W. WIERING
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

Attorney for Plaintiff
JULIE MACARAIG

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

JULIE MACARAIG,

Plaintiff,

vs.

MATTHEW CHARLES STEGMAN,
UNITED STATES OF AMERICA, BRIAN
VINCENT PACE

Defendants

Civil Action No. C08-01352-edl

FIRST AMENDED COMPLAINT

Plaintiff, JULIE MACARAIG, complaining against defendants MATTHEW CHARLES STEGMAN, UNITED STATES OF AMERICA and BRIAN VINCENT PACE alleges:

JURISDICTION

1. The jurisdiction of this court is based upon the Federal Tort Claims Act, 28 USC §§1346(b), 2671-2680 and 28 USC §1331.

2. Plaintiff is a citizen of the United States of America.

3. Plaintiff filed an administrative claim with the United States Department of Justice, Torts Branch, Civil Division on February 7, 2007 as required by 28 USC §2675(a).

4. The claim was denied. A copy of the denial is attached as Exhibit "A"

VENUE

5. Venue is proper under 28 USC §1402(b) because the accident which is the subject of this complaint occurred in this judicial district and under 28 USC §1391(c) because one of the defendants is the United States America and a defendant is an employee of the United States of America who was acting within the scope of his employment at the time of the occurrence complained of herein.

6. Defendant MATTHEW CHARLES STEGMAN resides in this district and a Substantial part of the events giving rise to this claim occurred in this district.

7. Defendant BRIAN VINCENT PACE resides in this district and a substantial part of the events giving rise to this claim occurred in this district.

8. Plaintiff resides in this district and no real property is involved in this action.

CLAIM FOR RELIEF

9. On March 13, 2006 at a point approximately 0.1 miles west of McBryde Avenue, on Interstate 80 westbound on the east shore freeway in the number 1 lane in the city of Richmond, Contra Costa County, California, Plaintiff was operating her 2002 Blue Mercedes ML320 westbound and slowed to stop for traffic.

10. The vehicle, a 2001 red and yellow Chevrolet Silverado, was operated by BRIAN VINCENT PACE and was following the vehicle of Plaintiff and also slowed to stop when BRIAN VINCNET PACE noticed the break lights of Plaintiff and the slowing traffic.

11. Defendant MATTHEW CHARLES STEGMAN was operating a 2002 Dodge Stratus, License number 4WUM187, which was owned and operated by the General Services Administration, a division of the United States of America,

12. MATTHEW CHARLES STEGMAN was operating the Dodge Stratus vehicle in the course and scope of his employment with the United States of America.

13. MATTHEW CHARLES STEGMAN was driving the Dodge Stratus in the number one lane at a speed of approximately 65miles per hour behind the vehicle operated by BRIAN VINCENT PACE and, upon noticing the vehicle in front of him slowing, failed to apply

1 the brakes on his vehicle in a sufficient manner and in sufficient time to slow his vehicle causing
2 the Dodge Stratus to impact with the rear of the Chevy Silverado operated by BRIAN VINCENT
3 PACE and causing that vehicle to move forward and impact with the rear of the 2002 Mercedes
4 ML320 being operated by Plaintiff, causing physical damage to said vehicle and physical injuries
5 to Plaintiff.

6 14. The injury to Plaintiff was proximately caused by the 2002 Dodge Stratus being
7 negligently driven by MATTHEW CHARLES STEGMAN, which struck plaintiff who was
8 appropriately operating her vehicle.

9 15. The negligence of MATTHEW CHARLES STEGMAN consisted of failing to
10 operate the 2002 Dodge Stratus in a manner and speed which was safe for the driving conditions
11 and failing to slow and stop said vehicle when traffic in front of him slowed and stopped and in
12 failing to maintain a safe and adequate distance between the vehicle he was driving and the
13 vehicle next in front of his vehicle to permit him to slow and stop the vehicle without impacting
14 the vehicle in front of him as was necessary.

15 16. At the time of the accident, MATTHEW CHARLES STEGMAN was an
16 employee of the United States of America and was acting within the scope of his employment
17 and the United States of America owned the vehicle he was driving which struck and injured
18 Plaintiff.

19 17. As a proximate result of the negligence of defendant United States of America,
20 through its driver and employee MATTHEW CHARLES STEGMAN, plaintiff incurred physical
21 injuries including pain and suffering.

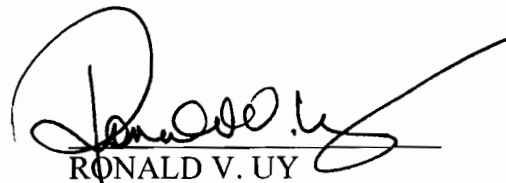
22 18. As a proximate result of defendant's negligence, and of plaintiff's injuries,
23 plaintiff suffered great pain of body and mind and incurred expenses for medical attention and
24 hospitalization in the sum of at least \$35,776.99.

25
26 WHEREFORE, Plaintiff respectfully prays for judgment against the defendant as follows:

- 27 1. For damages in the sum of at least 35,775.90 and for all injuries received by plaintiff
28 subject to proof, plus interest and costs.

1 2. For such other and further relief as the court may deem just and proper.
2
3

4 Dated: May 13, 2008

A handwritten signature in black ink, appearing to read 'Ronald V. Uy', is written over a horizontal line.

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